

19STCV46195 19STCV46195

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C07%2F15%2F2026

Source SHA-256: e931b77285741ca98611f38329e6cb498b2e87de54c4df7ca8a542704661ac2e

Case Number: 19STCV46195 Hearing Date: July 15, 2026 Dept: 512

HEARING DATE: Weds., July 15, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Arevalo,

et al. v. U Work Personnel, Inc., COMPL. FILED: 12-26-19

et al. FAC

FILED: 08-14-20

CASE NUMBER: 19STCV46195

SAC FILED: 05-06-21

NOTICE: OK

PROCEEDINGS: MOTION

FOR ENTRY OF JUDGMENT PURSUANT TO COURT'S PRIOR ORDER GRANTING MOTION TO
ENFORCE SETTLEMENT

MOVING PARTY: Plaintiffs

Alvaro Arevalo, Javier Arevalo, and Elsy Erazo

RESP. PARTY: None

MOTION FOR ENTRY OF JUDGMENT

(CCP §§ 683.020, 683.110)

TENTATIVE RULING:

Plaintiffs Alvaro Arevalo, Javier
Arevalo, and Elsy Erazo's unopposed Motion for Entry of Judgment
Pursuant to Court's Prior Order Granting Motion to Enforce Settlement is
GRANTED.

Plaintiffs are to file and serve a
Proposed Judgment consistent with the Court's order within five days of this
Court's order.

Moving parties are ordered
to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 12, 2026 ☐ Late ☒
None

REPLY: None
filed as of July 12, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On May
6, 2021, Plaintiffs Alvaro Arevalo, Javier Arevalo, and Elsy Erazo
("Plaintiffs") filed a Second Amended Complaint ("SAC") against Defendants U
Work Personnel, Inc., Arms Trans Inc., and Arms Logistics ("Defendants") and

Does 1-20.

On

January 20, 2022, Plaintiffs filed Notice of Settlement of Entire Case.

On March

16, 2022, the Honorable Judge Leiter dismissed the action with prejudice pursuant to the parties' stipulation and retained jurisdiction pursuant to Code of Civil Procedure section 664.6. (3/16/22 Stip. & Order.)

On September

12, 2022, the Court granted Plaintiffs' Motion to Enforce Settlement as to U Work Personnel, Inc. and Guillermo Rubio only and declined to award sanctions against Plaintiffs. (9/12/22 Order.)

On

November 18, 2025, the Court noted it had received "the Declaration of Luis Guardado in Support of Plaintiff's Request for [Proposed] Judgment" and found that Plaintiff must file a motion. (11/18/25 Order.)

On May

7, 2026, Plaintiffs filed the instant Motion for Entry of Judgment Pursuant to Court's Prior Order Granting Motion to Enforce Settlement (the "Motion").

To date, no Opposition to the Motion has been filed.

II.

Legal

Standard & Discussion

Plaintiffs move pursuant to Code of Civil Procedure sections 683.020 and 683.110 to enter judgment pursuant to the Court's 9/12/22 order granting Plaintiffs' Motion to Enforce Settlement. (Motion, pp. 1-2, 5-6, Guardado Decl., ¶¶ 5-6, Exh. 2.)

In support of the Motion,

Plaintiffs present a declaration from Plaintiffs' counsel stating that Plaintiffs did not attempt to enforce the judgment entered on September 12, 2022, "due to concerns that collection efforts against U WORK and Guillermo

Rubio would likely be futile, as Plaintiffs believed U WORK was still a dissolved corporation. (Motion, Guardado Decl., ¶ 15.) However, Plaintiffs learned in or about September 2025 that U Work was revived/reinstated and determined that collection efforts against U Work and Rubio could now be productive. (Motion, Guardado Decl., ¶ 16.) Upon commencing collection efforts on behalf of Plaintiffs, Plaintiffs' counsel discovered that the 9/12/22 judgment "had not been memorialized" and thereafter submitted a Proposed Judgment reflecting the 9/12/22 ruling. (Motion, Guardado Decl., ¶ 17.) However, the Court rejected the Proposed Judgment on the grounds that Plaintiffs "had not explained why the proposed judgment was being submitted approximately three years after the motion [to enforce settlement] was initially granted." (Motion, Guardado Decl., ¶ 18.) In response to the Court's rejection, Plaintiffs' counsel filed a declaration on November 13, 2025, explaining the circumstances underlying the delayed filing of the Proposed Judgment; at a hearing regarding the declaration, the Court ruled that a motion was required. (Motion, Guardado Decl., ¶¶ 19-20, Exh. 3.)

"From November 18, 2025, to May 7, 2026, Plaintiffs were contemplating whether they were willing to expend resources on any further motion practice associated with this matter. On May 7, 2026, Plaintiff's decided to pursue obtainment of a signed judgment through motion practice." (Motion, Guardado Decl., ¶¶ 21-22.) As such, the instant Motion was filed.

Code of Civil Procedure section

683.020 states that a money judgment or judgment for possession or sale of property expires after 10 years and may not thereafter be enforced. (Code Civ. Proc., § 683.020.)

When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.

(Code Civ. Proc., § 187; see also Highland Springs Conference & Training Center v. City of Banning (2016) 244 Cal.App.4th 267, 280 ["Section 187 grants every court the power and authority to carry its jurisdiction into effect"].)

Here,

the Court finds the evidence presented is sufficient to demonstrate why judgment should be entered pursuant to the Court's 9/12/22 Order almost four years after judgment was issued. The 9/12/22 Order is still enforceable (Code Civ. Proc., § 683.020), and the Court finds it is within the Court's power and authority to take such actions, such as entering a formalized judgment, to carry its jurisdiction and 9/12/22 Order into effect. (Code Civ. Proc., § 187.) Furthermore, the Court notes the Motion is unopposed.

Thus,
the Motion is GRANTED.

III.

Conclusion
& Order

For the foregoing reasons, Plaintiffs
Alvaro Arevalo, Javier Arevalo, and Elsy Erazo's unopposed Motion for
Entry of Judgment Pursuant to Court's Prior Order Granting Motion to Enforce
Settlement is GRANTED.

Plaintiffs are to file and serve a Proposed
Judgment consistent with the Court's order within five days of this Court's
order.

Moving parties are ordered
to give notice.